

2. **Charities by charter.**—Before entering upon the duties of trustees for charities, it may be proper to introduce a few

limitation to "needy relatives" creates a charitable bequest; *Beardsley v. Selectmen*, 53 Conn. 489; 55 Am. Rep. 152; *Quinn v. Shields*, 62 Ia. 129; 49 Am. Rep. 141; *Sowers v. Cyreniuse*, 39 Ohio St. 29; 48 Am. Rep. 418; *De Campo v. Dobbins*, 29 N. J. Eq. 36; *Webster v. Morris*, 66 Wis. 366; *Suter v. Hilliard*, 132 Mass. 412; 42 Am. Rep. 444. A gift to erect a house of worship may constitute a public charity if there is no definite body for whose use the gift was intended. If definite in its limitations it cannot be a public charity. *Old South Soc. v. Crocker*, 119 Mass. 1; 20 Am. Rep. 298; *Saltonstall v. Sanders*, 11 Allen, 446; *Atty. Gen. v. Federal St. Meeting House*, 3 Gray, 1; *Cong. Soc. v. Waring*, 24 Pick. 304. A corporation, the object of which is to provide for the sick without compensation, is a public charity; *McDonald v. Mass. Gen. Hospital*, 120 Mass. 432; 21 Am. Rep. 529; *Gooch v. Association for Relief Aged Females*, 109 Mass. 558; *Sanderson v. White*, 18 Pick. 328; *County of Hennepin v. Brotherhood of Gethsemane*, 27 Minn. 460. So is a gift for use of Sabbath-schools for the diffusion of Christian principles as taught and practised by Evangelical denominations; *Morville v. Fowle*, 144 Mass. 109; or for aid of such indigent, needy and meritorious widows and orphans as need temporary help; *Camp v. Crocker*, 54 Conn. 21. Likewise a bequest of money to be "expended in the education of the scholars of poor people; *Clement v. Hyde*, 50 Vt. 716; "for purchase and distribution of such religious books or reading as they shall deem best; *Simpson v. Welcome*, 72 Me. 496; *Drew v. Wakefield*, 54 Me. 291; *Going v. Emery*, 16 Pick. 107; *Bartlet v. King*, 12 Mass. 537. A masonic lodge is not a public charity or benevolent institution; *Bangor v. Masonic Lodge*, 73 Me. 428; 40 Am. Rep. 369; *Bolton v. Bolton*, 73 Me. 299; but see *Indianapolis v. Grand Master*, 25 Ind. 518; *King v. Parker*, 9 Cush. 71; *Duke v. Fuller*, 9 N. H. 530; *Mayor of Savannah v. Solomon's Lodge*, 53 Ga. 93. Such a lodge may receive in trust for charitable purposes; *Everett v. Carr*, 59 Me. 326. Neither is an Odd Fellows' lodge a charitable institution; *Babb v. Reed*, 5 Rawle, 157. For case of an institution of science, see *Delaware Co. Inst. v. Delaware Co.* 94 Pa. St. 163. Gift to church to suppress manufacture and sale of intoxicating liquor is valid; *Haines v. Allen*, 78 Ind. 100; 41 Am. Rep. 555. A gift "for benevolent purposes" is not a public charity; *Chamberlain v. Stearns*, 111 Mass. 267; unless used in connection with charity, when the two words may be regarded as synonymous; *Saltonstall v. Sanders*, 11 Allen, 446; *Rotch v. Emerson*, 105 Mass. 431. A public library may be a public charity; *Donohugh v. Library Co.* 5 Norris, 306; *Miller v. Porter*, 53 Pa. St. 292; *City of Philadelphia v. Girard's Heirs*, 9 Wright, 9; a parochial school not carried on for profit but to which parents are to make contributions as able is a charity; *Gerke v. Purcell*, 25 Ohio St. 229. For the aid and support of those of my children who may be destitute, not a public charity; *Kent v. Dunham*, 142 Mass. 216; *Brattle Sq. Church v. Grant*, 3 Gray, 142; *Thorndike v. Loring*, 15 Gray, 391; *Sears v. Russell*, 8 Gray, 86.

Uncertainty.—Our laws are more strict than the English as to the certainty and definiteness with which the cestuis que trust are named. A bequest to trustee "for any and all benevolent purposes that he may see fit," is void for uncertainty; *Adye v. Smith*, 44 Conn. 60; 26 Am. Rep. 424; but see *Beardsley v. Selectmen of Bridgeport*, 53 Conn. 489; so is gift to "next of kin who may be needy;" *Fontaine's Admr. v. Thompson's Admr.* 80 Va. 229;